

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-021
Amendments to Title 5 of the Chickasaw Nation Code
(Rules of Evidence)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for the rules of evidence, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 13, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 5-1304.12

**SEXUAL OFFENSE AGAINST ANOTHER PERSON;
EVIDENCE OF COMPLAINING WITNESS'S PREVIOUS
SEXUAL CONDUCT INADMISSIBLE; EXCEPTION.**

A. In a criminal case in which a person is accused of a sexual offense against another person, the following is not admissible:

1. Evidence of reputation or opinion regarding other sexual behavior of a victim or the sexual offense alleged.

2. Evidence of specific instances of sexual behavior of an alleged victim with persons other than the accused offered on the issue of whether the alleged victim consented to the sexual behavior with respect to the sexual offense alleged.

B. The provisions of subsection A of this section do not require the exclusion of evidence of:

1. Specific instances of sexual behavior if offered for a purpose other than the issue of consent, including proof of the source of semen, pregnancy, disease, or injury;

2. False allegations of sexual offenses; or

3. Similar sexual acts in the presence of the accused with persons other than the accused which occurs at the time of the event giving rise to the sexual offense alleged.

C. If the defendant intends to offer evidence described in subsection B of this section, the defendant shall file a written motion to offer such evidence accompanied by an offer of proof not later than fifteen (15) days before the date of the trial in which such evidence is to be offered, except that the court may allow the motion to be made at a later date, including during trial, if the court determines either that the evidence is newly discovered and could not have been obtained earlier through the exercise of due diligence or that the issue to which such evidence relates has newly arisen in the case. Any motion made under this paragraph shall be served on all other parties by counsel for the defendant and on the alleged victim by the prosecutor.

D. If the court determines that the motion and offer of proof described in Subsection C contains evidence described in subsection B of this section, the court may order an in-camera hearing to determine whether the proffered evidence is admissible under subsection B of this section.

SECTION 5-1304.13

EVIDENCE OF COMMISSION OF OTHER SEXUAL ASSAULT OFFENSE; ADMISSIBILITY; DISCLOSURES BY PROSECUTOR.

A. In a criminal case in which the defendant is accused of an offense of sexual assault, evidence of the defendant's commission of another offense or offenses of sexual assault is admissible and may be considered for its bearing on any matter to which it is relevant.

B. In a case in which the Nation intends to offer evidence under this rule, the prosecutor shall disclose the evidence to the defendant, including statements of witnesses or a summary of the substance of any testimony that is expected to be offered, at least fifteen (15) days before the scheduled date of trial or at such later time as the court may allow for good cause.

C. This rule shall not be construed to limit the admission or consideration of evidence under any other rule.

D. For purposes of this rule, "offense of sexual assault" means a crime under federal law or the laws of the Chickasaw Nation that involve:

1. Any conduct proscribed by Sections 5-1503.13, 5-1503.14, and 5-1503.16 of Title 5;
2. Contact, without consent, between any part of the defendant's body or an object and the genitals or anus of another person;

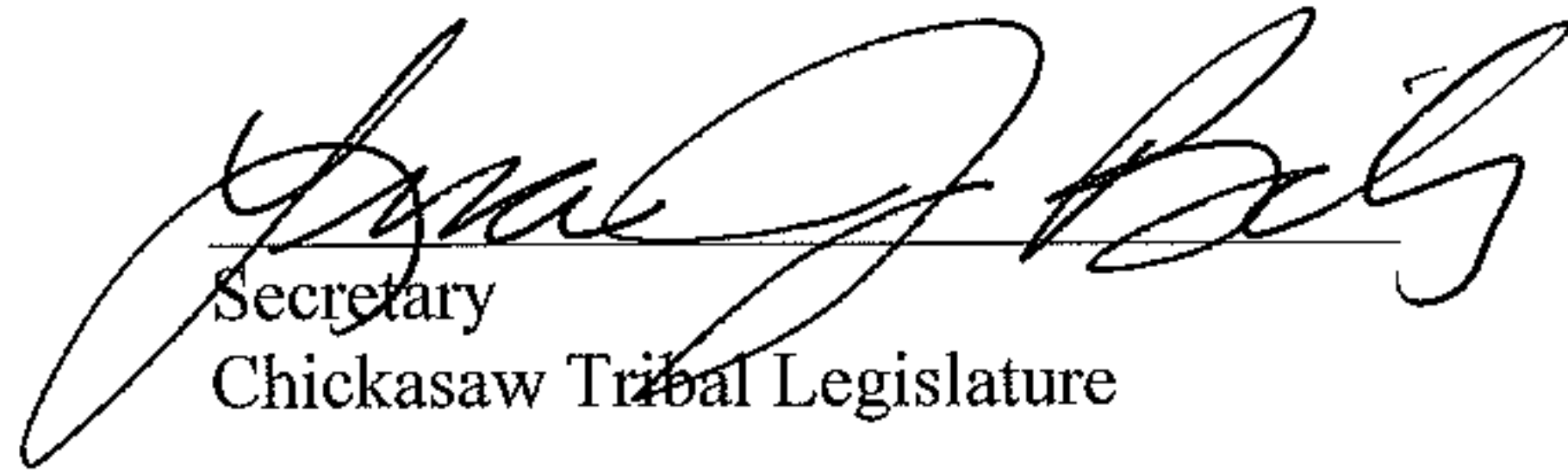
3. Contact, without consent, between the genitals or anus of the defendant and any part of another person's body;
4. Deriving sexual pleasure or gratification from the infliction of death, bodily injury, emotional distress, or physical pain on another person; or
5. An attempt or conspiracy to engage in conduct described in paragraphs 1 through 4 of this subsection.

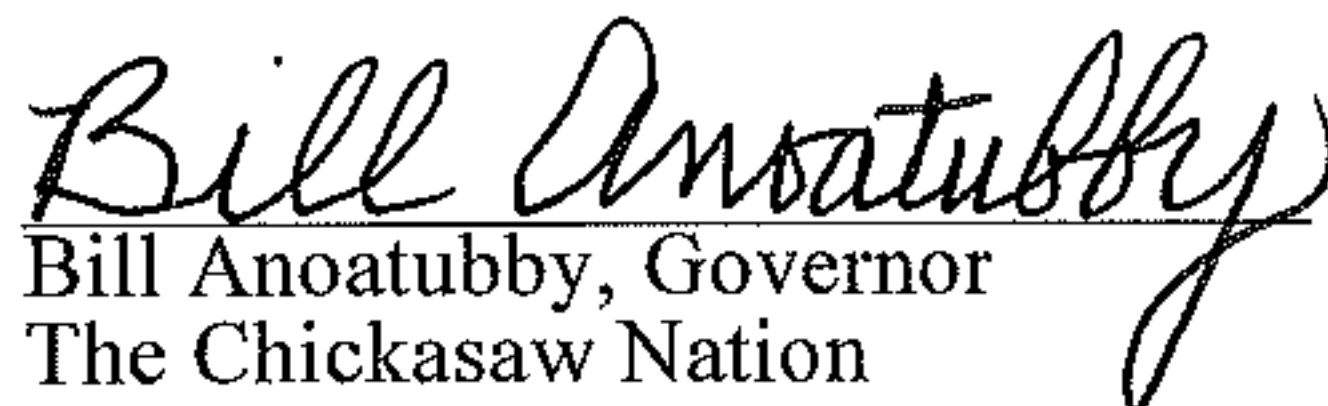
SECTION 5-1304.14**EVIDENCE OF COMMISSION OF OTHER CHILD
MOLESTATION OFFENSE - ADMISSIBILITY -
DISCLOSURES BY PROSECUTOR.**

- A. In a criminal case in which the defendant is accused of an offense of child molestation, evidence of the defendant's commission of another offense or offenses of child molestation is admissible, and may be considered for its bearing on any matter to which it is relevant.
- B. In a case in which the Nation intends to offer evidence under this rule, the prosecutor shall disclose the evidence to the defendant, including statements of witnesses or a summary of the substance of any testimony that is expected to be offered, at least fifteen (15) days before the scheduled date of trial or at such later time as the court may allow for good cause.
- C. This rule shall not be construed to limit the admission or consideration of evidence under any other rule.
- D. For purposes of this rule, "child" means a person below the age of sixteen (16), and "offense of child molestation" means a crime under federal law or the laws of the Chickasaw Nation that involve:
 1. Any conduct proscribed by Sections 5-1503.13, 5-1503.14, and 5-1503.16 of Title 5, that was committed in relation to a child;
 2. Contact between any part of the defendant's body or an object and the genitals or anus of a child;
 3. Contact between the genitals or anus of the defendant and any part of the body of a child;
 4. Deriving sexual pleasure or gratification from the infliction of death, bodily injury, emotional distress, or physical pain on a child; or
 5. An attempt or conspiracy to engage in conduct described in paragraphs 1 through 4 of this subsection.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 21, 2021, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 24 2021

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Explanation:

This resolution adds three sections to Title 5. The first section limits the admissibility of evidence related to a victim's sexual history. The second section allows for the admissibility in sexual assault cases of evidence related to a defendant's prior sexual assaults. The third section allows for the admissibility of evidence in child molestation cases related to a defendant's prior incidents of child molestation.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature